

25VECV06195 25VECV06195

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C08%2F04%2F2026

Source SHA-256: ce29516c222064bbba38884a23fd6fd583d608e4d76a6269f84a2a5f823bace6

Case Number: 25VECV06195 Hearing Date: August 4, 2026 Dept: B

Tentative Ruling

Nouri v. Jaguar Land Rover North

America, Case no. 25VECV06195

Hearing date August 4, 2026

Defendant

JLRNA's Motion to Strike - UNOPPOSED

Plaintiff

Nouri sues defendant Jaguar Land Rover North America, LLC for violations of the Song-Beverly Act and seeks civil penalties under Civ. Code §1794(c). Defendant moved to strike the claim for civil penalties, arguing noncompliance with Code Civ. Proc. §871.24. Plaintiff opposed. The court granted the motion, with 20 days leave to amend. See 2/5/26 Min. Order.

Defendant

moves a second time to strike plaintiff's prayer for civil penalties from the first amended complaint, again arguing noncompliance. The motion is unopposed.

Under

subdivision (a) of §871.24, at least 30 days prior to filing a civil action seeking penalties under Civ. Code §1794(c), a consumer must: (1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN"), and a brief summary of the repair history and problems with the vehicle; (2) demand that the manufacturer repurchase or replace the vehicle; and (3) send this written notice either by (a) email to the manufacturer's

designated address, or (b) certified or registered mail, return receipt requested, to the address in the owner's manual or warranty booklet. See Civ. Code §871.24(a)–(d).

The

FAC adds a single new paragraph: "Plaintiff has satisfied his statutory prerequisites pursuant to Code of Civil Procedure, § 871.24(a), therefore is entitled to seek, inter alia, civil penalties pursuant to Civil Code § 1794(c)." FAC, para. 19. This conclusory paragraph fails to state required facts such as VIN, repair history or whether notice was sent pre-litigation.

The

court's prior ruling stated failure to attach the notice to the complaint, or to plead its contents in detail, was fatal to plaintiff's Civ. Code §1794(c) claim. See 2/5/26 Min. Order. Plaintiff failed to cure these defects via the FAC. The motion is unopposed.

GRANTED;

plaintiff's prayer for civil penalties (FAC, 9:7) is struck. No further leave to amend will be granted.